

# LIABILITY INVESTIGATION REPORT

Cardinal Adjusting Services · Our reference CAS-2026-0331

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## INSTRUCTIONS

|                  |                                             |
|------------------|---------------------------------------------|
| Instructed by:   | Ashcombe Vail Commercial Insurance Services |
| On behalf of:    | Vanterra Construction Group, LLC            |
| Policy number:   | GL-5529-41836                               |
| Author:          | Beatriz Oyelaran-Whitfield, AIC             |
| Instructed by:   | Piedmont Casualty & Surety Company          |
| Instructed on:   | 19 March 2026                               |
| Site attendance: | 19 and 24 March 2026                        |
| Scope:           | Liability, quantum and recovery prospects   |

## THIRD-PARTY PROPERTY AND PERSONS

|                    |                                                                         |
|--------------------|-------------------------------------------------------------------------|
| Claimant:          | Rosalind Achterberg-Nwankwo, 61, patient of the adjacent practice       |
| Injuries:          | Comminuted right distal radius fracture, clavicle fracture, lacerations |
| Vehicle 1:         | 2023 Subaru Outback — roof, windshield, hood, towed                     |
| Vehicle 2:         | 2019 Toyota RAV4 — hood and quarter panel                               |
| Adjacent property: | Landscape wall 40 lin ft, bollard lighting                              |

# LIABILITY INVESTIGATION REPORT

Circumstances and findings

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## CIRCUMSTANCES

Circumstances:

The insured is the general contractor on a medical office building under construction at 4405 Sable Creek Drive, which is designated project P-3 on its liability policy. The adjacent building at 4415 is occupied and operating. The two properties share an access drive and a parking field.

## FINDINGS

Findings:

The banding on the failed cube pack was 19 mm polyester strapping applied by the supplier, Carolina Brick & Supply. Two retained straps from the same delivery show seal slippage at the crimp rather than tensile failure of the strap. The telehandler was within its load chart and its operator held a current certification; the machine was inspected and released on 19 March. The lift passed over a shared access drive that had not been barricaded to pedestrians, which is the exposure the insured could have controlled. Liability against the insured is probable; contribution from the brick supplier is realistic.

|                     |                                                                    |
|---------------------|--------------------------------------------------------------------|
| Date of loss:       | <b>17 March 2026</b>                                               |
| Cause of loss:      | <b>Falling brick — banding failure during a telehandler unload</b> |
| Incident reference: | <b>VCG-INC-2026-0317</b>                                           |
| Injuries reported:  | <b>1</b>                                                           |

# LIABILITY INVESTIGATION REPORT

Preliminary quantum and reserve advice

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## PRELIMINARY QUANTUM

Basis:

The figures below are preliminary and are given for reserving purposes only. They are subject to verification and may move as the investigation continues.

|                                        |                               |
|----------------------------------------|-------------------------------|
| Bodily injury indemnity, range:        | <b>USD 400,000 to 750,000</b> |
| Medical specials to date:              | <b>USD 118,000</b>            |
| Third-party vehicles, two:             | <b>USD 46,000</b>             |
| Landscape wall and bollard lighting:   | <b>USD 28,000</b>             |
| Adjacent tenant business interruption: | <b>USD 14,000</b>             |
| Estimated loss:                        | <b>663,000</b>                |
| Currency:                              | <b>USD</b>                    |

## ON THE SUBCONTRACTOR AND THE DEDUCTIBLE

Comment:

A written subcontract dated 4 November 2025 was executed before the loss. It carries an indemnity in the insured's favour and requires additional insured status on a primary and non-contributory basis for ongoing and completed operations, and a certificate evidencing USD 1,000,000 each occurrence was on file before work began. The subcontractor insurance warranty is therefore satisfied and the per-claim deductible is USD 25,000, not the USD 250,000 the warranty imposes when it is not.

## RECOMMENDATION

Recommendation:

Maintain the tender to the subcontractor's carrier. Preserve the retained banding straps and the remaining packs from the same delivery for the supplier.